

< Rick Mark



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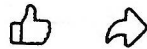


Rick Mark

Jan 10 · 🌐



So if the check engine light is on after two trips to BMW, and anything is missing, then we get to call it "across state lines" right... therefore entering a whole new round of penalties (interstate commerce and federal jurisdiction)

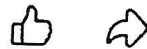


Rick Mark

Jan 6 · 🌐



There's nothing more disgraceful then someone who needs to play unfair, take credit for your achievements, and still complains that the world doesn't see them as a genius... Here's to my ex who will get to live with all the shame of the world knowing that he thought he wasn't good enough... because he had to... See more

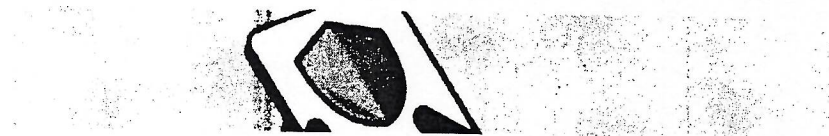


Rick Mark

Jan 6 · 🌐



FYI if you attempt to text me, it seems Rob Mark can't be a loser and walk away but seems to ha... See more



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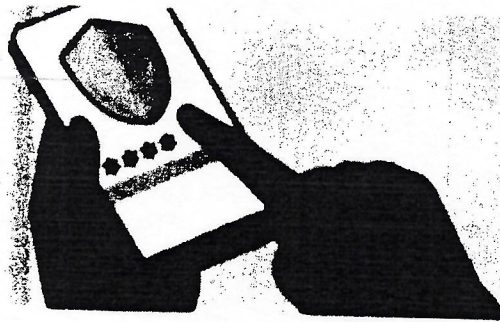
All Reels Photos Events



Rick Mark
Jan 6 ·



FYI if you attempt to text me, it seems Rob Mark can't be a loser and walk away but seems to have gotten in my SMS path...



Code



We can send a new code in 00:56



Trust this device and skip this step from now on

Continue

Try another way

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Notifications



Profile

12:07

5G 70%



Rick Mark

Feb 22



On Jan 14th, I came home from Great Falls. Showed up at my parents home about 10am and a second cloned device was created about 1136am. The second cloned device prevented me from being able to control my own phone number and text message, gave access to my home through UniFi access, provided 1Password, and access to my camera system, as well as the myBMW app, Walgreens prescriptions... and on and on...

Since the device was swapped inside my parents Neyland home, and it was at the same time as when my father was helping me with packages as well as showing me the new mounted camera on the front of the garage, and because the device also is a member of the Apple Family and my mother and my 1Passwords are recoverable... he handed over every one of our accounts, our security systems, email, calls, texts, banking, and every bit of what was needed for me to find a job.

This is very similar to a different occasion when blowing out the sprinklers where he distracted me looking for channel locks while he allowed another actor to program a garage door opener, granting access to the garage, where the HVAC system was, allowing any gas to be injected into ducting while I sleep. (Later requiring a 20k change of my air conditioner)

In doing this, he created thousands of dollars, tons of risk, and hundreds of hours of work to restore and repair the security of both homes. In this way he has allowed and acted as a human shield to Rob Mark. I will have to implicate him with logging and forensic data as a participant. He permitted the loss of my physical safety and made finding a job at a critical juncture difficult. He allowed access to the OBD connector of cars via unlock in the myBMW app. He allowed the recovery of my, mom's and his parents apple accounts.

12:07

5G 70



Rick Mark

Feb 22 · 🌐



In doing this, he created thousands of dollars, tons of risk, and hundreds of hours of work to restore and repair the security of both homes. In this way he has allowed and acted as a human shield to Rob Mark. I will have to implicate him with logging and forensic data as a participant. He permitted the loss of my physical safety and made finding a job at a critical juncture difficult. He allowed access to the OBD connector of cars via unlock in the myBMW app. He allowed the recovery of my, mom's and his parents apple accounts.

He created a huge burden and financial strain on the entire family, but most of all me at a time I really couldn't handle it.

Afterwards, he refused to permit me the safety of the downstairs basement room for the few days that fully resetting and rotating keys and passwords on these devices requires. This despite how important it obviously is for his own safety.

He continues to lie about the swap, though I have precise timestamp data, meaning that even if I muster the work to do all this at some other location, I presume he will simply do so again.

He feels no obligation to help me undo the massive amount of damage he caused, and the time he wasted, and thinks I'm lazy and all for not doing anything to undo the damage until that effort would be worthwhile.

My father needs to understand that if he hides things like this from me, or other family members the amount of effort is compounded to a point where it is insurmountable and he will destroy us all.

Brian Penwell, Cheloye Penwell, Kristen Penwell, Ken Penwell and Shirley Penwell



1



12:10

5G 69



Rick Mark ✓

Feb 22 · 🌐



of effort is compounded to a point where it is insurmountable and he will destroy us all.

Brian Penwell, Cheloye Penwell, Kristen Penwell, Ken Penwell and Shirley Penwell



1



Rick Mark ✓ · 17w · ✍️ Author

To further this up, he was able to justify this because he believed the tampering with my device would just affect me, and my physical safety, and now cares that others may be hurt...



Rick Mark ✓ · 17w · ✍️ Author

Clay Carlson



Rick Mark ✓ · 17w · ✍️ Author

Now my mother has said "I haven't convinced people" - that's because I wasn't yet trying too, but this is the last stop before to protect all of our assets I have to make this into a report or filing.



Rick Mark ✓ · 17w · ✍️ Author

And it's very likely that Rob will say "I'll fix everything but what happened to Rick"

This is the dumbest outcome, because who needs their stuff fixed to protect from the next one of these for us all????



12:11

5G 69



Rick Mark

Feb 22



Rick Mark · 17w · Author

And it's very likely that Rob will say "I'll fix everything but what happened to Rick"

This is the dumbest outcome, because who needs their stuff fixed to protect from the next one of these for us all????



Rick Mark · 17w · Author

Now I do suspect that Brian or Brad would be the ones to sell out in this deal and we will all end up worse.... because that is the continuous pattern. They should be held responsible entirely by the group should that occur



Rick Mark · 17w · Author

Because cutting me out of the deal will mean I will lose the ability to help in the future, be certain that if I'm not also restored, I will press these as charges as that is actually in the interest of all the others. I need my stability, tools, resources, etc to protect from these outcomes, and do not deserve to be punished for being the one that fixes my dad's mistake. He's the one who ought lose a toy like the ATV, boat or whatever for having betrayed the family for the best next outcome



12:13

5G 68

< Rick Mark



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Rick Mark

21m ·



Taking the Sudafed is because
Rob Mark has ED



Rick Mark

1h ·



Still annoying me, apparently
the Sudafed has disappeared



Rick Mark

13h ·



So after having to deal with a ransom demand - it
seems taking the X5 key was added to the deal.



Rick Mark

13h ·



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17:45

10



< Rick Mark



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Rick Mark

1d ·



And the only reason he would fill trimex here is to go back to threatening children... so be aware what the intention is...:



Rick Mark

1d ·



Wonder how much timex
Rob's getting supplied with to
do this...



Rick Mark

1d ·



I'm really quite tired of the assaults in my home, the twisting of facts and the life endangering nature of how a priapism could throw a clot... so the truth is that every time is more akin to gross negligence with depraved indifference... I'm also tired of family who stands by and does nothing to prevent this kind of assault



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Notifications



Profile

17:46

10



< Rick Mark



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Looks like this is the first time there's property theft so I'll get to put that text in the official report and obviously post that



1



Rick Mark

14h ·



In addition to the damn X5 keys, were also seeing a title that was stolen and forged



Rick Mark

15h ·



Best part is he thinks he will lie to her and get away with it



Rick Mark

1d ·



Sure - embolden him... now it falls on you for what happens next because it was allowed to happen

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Profile

17:47

10



< Rick Mark



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Rick Mark

14h ·



I received that ransom demand, later that night the key to the X5 disappeared, other property seems absent - if one damn thing is missing in the morning or dollar - I will get the joy of including those messages in the stolen property report



Rick Mark

14h ·



Gonna be really interesting that there's actual theft after this was received



Saturday 16:12



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< Rick Mark



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Rick Mark

17h · 🌐



Sadly, no matter what I send to LE, how much I screen here... nothing will truly walk back from this precipitous position until my father, who knows full well I've never lifted a hand to anyone, reverses the narrative that paints me as dangerous



Rick Mark

17h · 🌐



Rob Mark wants to discredit and hurt me so badly, that he would bully my father into peruse a restraining order that makes me look dangerous and unstable without a surrender weapons order, have my wallet disappear to buy a gun with my ID, get me so financially strapped that I'm not able to account for my whereabouts by losing my home and my camper, and then have a look alike harm my entire family (ensuring that they can't come forward) and framing me for it...



Rick Mark

1d · 🌐



I received that ransom demand, later that night the key to the X5 disappeared, other property seems absent - if one damn thing is missing in the morning or dollar - I

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Notifications



Profile

EXHIBIT B

CN: 2620094832

SN: 6

PC: 13

FILED

MAR 09 2026

TIMOTHY W. FITZGERALD
SPOKANE COUNTY CLERK

XSuperior Court of Washington, County of Spokane

Brian Penwell 2/4/69
Petitioner DOB

No. 2620094832

Protection Order (OR)

vs.

Richard Mark 1/22/88
Respondent DOB

☐ Domestic Violence (PRT)

☐ Sexual Assault (SXP)

☒ Harassment (AH)

☐ Stalking (PSTK)

☐ Vulnerable Adult (PRTVA)

Service: 11

Clerk's Action Required: 5.B., 10, 11, 12, 15

Protection Order

1. This order is effective immediately and for 1 year from today's date, unless a different end date is listed here (end date): _____.

This protection order complies with the Violence Against Women Act and shall be enforced throughout the United States. See last page.

2. This order restrains (name): Richard Mark
also known as (list any known aliases) _____

The restrained person must obey the restraints ordered in section 8.

Gender <u>M</u>	Race <u>W</u>	Height <u>5'9"</u>	Weight <u>180</u>
Eye Color <u>blue</u>	Hair Color <u>Dark</u>	Skin Tone <u>light</u>	Build <u>med</u>

Noticeable features (Ex.: tattoos, scars, birthmarks): _____

Has ☐ access to or ☐ possession of ☐ firearms ☐ other weapons ☒ unknown

Surrender weapons ordered: ☐ Yes ☒ No

3. This order protects (name): Brian Penwell
and the following children who are under 18 (if any) ☐ no minors

own
Petitioner
3-9-26
9:55 PM
JH

Child's Name	Age	Child's Name	Age
1.		2.	
3.		4.	
5.		6.	

The person who filed this petition requested protection for *(check all that apply)*:

☒ [X] Themselves.

☐ [] Someone else. The filing party has the right to petition on the protected person's behalf because:

☐ [] The filing party is a parent, legal guardian, or custodian of the minor protected person/s.

☐ [] The filing party is age 18 or older and a family or household member of the minor protected person/s. *(For domestic violence orders only.)*

☐ [] The filing party is age 15 to 17 and filed on behalf of a minor family or household member. The filing party has been chosen by the minor and is capable of pursuing the minor's stated interest in this case.

☐ [] The protected person is a vulnerable adult and the filing party is:

☐ [] the vulnerable adult's guardian, conservator, or legal fiduciary, or

☐ [] an interested person as defined by RCW 7.105.010(19), or

☐ [] WA Department of Social and Health Services.

☐ [] The protected person is an adult who does not meet the definition of a vulnerable adult, but who cannot file the petition themselves because of age, disability, health, or inaccessibility. *(Do not check this for vulnerable adult or domestic violence petitions.)*

Warnings to the Restrained Person.



You can be arrested even if the protected person or persons invite or allow you to violate the order. You alone are responsible for following the order. **Only the court may change the order.** Requests for changes must be made in writing.

If you do not obey this order, you can be arrested and charged with a crime.

- The crime may be a misdemeanor, gross misdemeanor, or felony depending on the circumstances. You may also be found in contempt of court.
- You can go to jail or prison, lose your right to possess a firearm or ammunition, and/or pay a fine.
- It is a felony to take or hide a child in violation of this order.
- If you travel to another state or to tribal lands or make the protected person do so, with the intention of disobeying this order, you can be charged with a federal crime.



Firearms and Weapons. Even if the court did **not** issue an *Order to Surrender and Prohibit Weapons*, under state or federal law you may be prohibited from getting or having a firearm, other dangerous weapons, ammunition, or concealed pistol license for as long as the protection order is in place. 18 U.S.C. § 922(g)(8). RCW 9A.18.000.

Findings

4. Notice and Hearing

The restrained person had reasonable notice and opportunity to participate. Notice of this hearing was served on the restrained person by:

- ☐ electronic service ☒ personal service ☐ service by mail
☐ service by publication ☐ other _____

The restrained person ☐ did ☐ did not have **actual notice** of this hearing.

The court held a hearing before issuing this full protection order. These people attended:

- | | | | |
|---|---|-----------------------------------|-----------------------------------|
| ☒ Protected Person | ☒ in person | ☐ by phone | ☐ by video |
| ☐ Protected Person's Lawyer | ☐ in person | ☐ by phone | ☐ by video |
| ☐ Petitioner (if not the protected person) | ☐ in person | ☐ by phone | ☐ by video |
| ☐ Restrained Person | ☐ in person | ☐ by phone | ☐ by video |
| ☐ Restrained Person's Lawyer | ☐ in person | ☐ by phone | ☐ by video |
| ☐ Other: _____ | ☐ in person | ☐ by phone | ☐ by video |

☐ This hearing was held remotely (online or by phone). The court confirmed staff received no contact from any absent party before proceeding without them.

5. Basis and Type of Protection Order

A. The restrained person and protected person/s are (check all that apply):

Intimate Partners

- ☐ current or former spouses or domestic partners
☐ parents of a child-in-common (unless child was conceived through sexual assault)
☐ current or former dating relationship (age 13 or older) who
☐ never lived together ☐ live or have lived together

Family or Household Members

- ☒ parent and child ☐ stepparent and stepchild
☐ grandparent and grandchild ☐ parent's intimate partner and child
☐ current or former cohabitants as roommates
☐ person who is or has been a legal guardian
☐ related by blood or marriage (specify how) _____

Other (examples: coworkers, neighbors, acquaintances, strangers) _____

- B. Based upon the petition, testimony, case record, and response, if any, the court finds by a preponderance of evidence that the protected person (or petitioner on their behalf) has proved the required criteria for the following protection order under chapter 7.105 RCW.

(Specify) Petitioner is a pilot & The Threats made by Respondent jeopardize his security. It is alleged Respondent has mental health issues

Check only one!

- ☐ **Domestic Violence Protection Order**— The restrained person has subjected the protected person to domestic violence: physical harm, bodily injury, assault, or the infliction of fear of physical harm, bodily injury, or assault; nonconsensual sexual conduct or nonconsensual sexual penetration; coercive control; unlawful harassment; or stalking. (For intimate partners or family or household members only).
- ☐ **Sexual Assault Protection Order**— The restrained person has subjected the protected person to nonconsensual sexual conduct, nonconsensual sexual penetration, or commercial sexual exploitation.
- ☐ **Stalking Protection Order**— The restrained person has subjected the protected person to stalking.
- ☐ **Vulnerable Adult Protection Order**— The restrained person has subjected the protected person to acts of abandonment, abuse, financial exploitation, or neglect. The protected person is a vulnerable adult as defined in chapter 7.105 RCW because the protected person:
- ☐ Is over 60 years old and does not have the functional, mental, or physical ability to care for himself or herself.
 - ☐ Is an individual subject to guardianship under RCW 11.130.265 or an individual subject to conservatorship under RCW 11.130.360.
 - ☐ Has a developmental disability as defined in RCW 71A.10.020.
 - ☐ Self-directs their own care and receives services from a personal aide under RCW 74.39.
 - ☐ Is receiving services from a home health, hospice, or home care agency licensed or required to be licensed under RCW 70.127.
 - ☐ Is receiving in-home services from an individual provider under contract with DSHS.
 - ☐ Has been admitted to an assisted living facility, nursing home, adult family home, soldiers' home, residential habilitation center, or any other facility licensed by DSHS.
- ☐ **Vulnerable Adult Objects.** The petition was filed by someone other than the vulnerable adult and the vulnerable adult objects to some or all of the order. The court held an evidentiary hearing and determined that the vulnerable adult is **not capable of protecting his or her person or estate** in connection with the issues raised in the petition or order, and that the vulnerable adult continues to

need protection. Because this order is inconsistent with the expressed wishes of the vulnerable adult, the court's order is governed by the legislative findings contained in RCW 7.105.900 that the protection order will help prevent abuse, neglect, exploitation, or abandonment of this vulnerable adult:

☒ **Antiharassment Protection Order**— The restrained person has subjected the protected person to unlawful harassment.

☐ No fee required (*stalking, hate crime, single act of violence, or threat of violence including malicious and intentional threat or presence of firearm/weapon causing substantial emotional distress, family or household member engaged in domestic violence, or nonconsensual sexual conduct or penetration or a sex offense.* RCW 7.105.105(9).)

6. **Jurisdiction**

The court has jurisdiction over the parties and the subject matter.

☐ **Minors:** Washington State ☐ has exclusive continuing jurisdiction; ☐ is the home state; ☐ has temporary emergency jurisdiction over the children.

☐ **Temporary Emergency Jurisdiction:** The petitioner has until (date) _____ to return to (state/court with jurisdiction over the minors) _____ to seek any court orders about these minors:

The Washington order will terminate on that date for the minors. RCW 26.27.231.

☐ **The person who filed is not a parent** of one or more children listed above.
* (Important! Complete Protection Order Attachment A: Non-Parent (ICWA), PO 030A/PO 040A.)

7. **Other Findings**

☐ **Credible Threat:** The restrained person represents a credible threat to the physical safety of the protected person/s.

☐ **The restrained person is under 18 years of age.** The court:

☐ appointed (name) _____ as guardian ad litem to represent the restrained person in this proceeding.

☐ did not appoint someone to represent the restrained person because:

☒ Other: the actions jeopardize the Petitioner's
employment

Restraints (Check all that apply):

8. The Court Orders: To the Restrained Person:

General Restraints

A. ☐ **No Harm:** Do not cause any physical harm, bodily injury, assault, nonconsensual sexual conduct or nonconsensual sexual penetration, and do not harass, threaten, or stalk:

☐ the protected person ☐ the minors named in section 3 above

☐ these minors only: _____

B. ☒ **No Contact:** Do not attempt or have any contact, including nonphysical contact, directly, indirectly, or through third parties, regardless of whether those third parties know of the order, except for service of court documents with:

☒ the protected person ☐ the minors named in section 3 above

☐ these minors only: _____

☐ these members of protected person's household: _____

☐ **Exception (if any):** Only this type of contact is allowed: _____

Exceptions about minors only, if any, provided in P below.

C. ☒ **Stalking Behavior:** Do not harass, follow, monitor, keep under physical or electronic surveillance, cyber harass (as defined in RCW 9A.90.120), or use phone, video, audio, or other electronic means to record, photograph, or track locations or communication, including digital, wire, or electronic communication, of:

☒ the protected person ☐ the minors named in section 3 above

☐ these minors only: _____

☐ these members of the protected person's household: _____

D. ☒ **Exclude and Stay Away:** Do not enter, return to, knowingly come within, or knowingly remain within 1,000 feet or other distance (specify) 1,000 Ft of:

☒ the protected person

☒ Protected Person's vehicle

☐ Protected Person's school

☒ Protected Person's workplace

☒ Protected Person's residence

☐ Protected Person's adult day program

☐ the shared residence

☐ the residence, daycare, or school of ☐ the minors named in section 3 above

☐ these minors only: _____

☒ Other: no comments on social media, no threats to employment

Exceptions about minors, if any, provided in P below.

Address: The protected person chooses to (check one):

☒ keep their address confidential ☐ list their address here: _____

E. ☐ **Vacate Shared Residence:** The protected person has exclusive right to the residence that the protected person and restrained person share (as listed in the Law Enforcement and Confidential Information form, PO 003). The restrained person must immediately vacate the residence.

F. ☐ **Intimate Images:** Do not possess or distribute intimate images of a protected person, as defined in RCW 9A.86.010. The restrained person must take down and delete all intimate images and recordings of a protected person in the restrained person's possession or control and cease any and all disclosure of those intimate images.

G. ☐ **Electronic Monitoring:** You must submit to electronic monitoring. (Restrained Person must be age 18 or older.)

Monitoring by (specify): _____

Term (if different from expiration of order): _____

☐ Restrained Person must pay cost of electronic monitoring.

H. ☒ **Evaluation:** The restrained person shall get an evaluation for: ☒ mental health ☐ chemical dependency (drugs and alcohol) at: _____

The evaluation shall answer the following question/s: _____

An evaluation is necessary because: _____

Respondent appears to have untreated mental health concerns that his parents would like to

I. ☐ **Treatment:** The restrained person shall participate in state-certified treatment as follows: see treatment for

☐ domestic violence perpetrator treatment program approved under RCW 43.20A.735 at _____

☐ sex offender treatment program approved under RCW 18.155.070 at: _____

☐ other: _____

J. ☐ **Personal Belongings:** The protected person shall have possession of essential personal belongings, including the following: _____

K. ☐ **Transfer of Assets:** Do not transfer jointly owned assets.

☐ **Finances:** The following financial relief is ordered: _____

L. ☐ **Vehicle:** The protected person shall have use of the following vehicle:

Year, Make & Model _____ License No. _____

M. ☐ **Restrict Abusive Litigation:** Comply with the *Order on Motion to Restrict Abusive Litigation* (FL All Family 155), filed separately.

N. ☐ **Pay Fees and Costs:** The protected person is granted judgment against the restrained person as provided in the *Judgment* (PO 044), filed separately. The court finds that the restrained person is not under active duty in military or SCRA has been complied with. 50 U.S.C. § 3931.

Firearms and Other Dangerous Weapons

O. ☐ **Surrender Weapons:**

Important! Also use form *Order to Surrender and Prohibit Weapons*, WS 001.

Findings. The court (*check all that apply*):

☐ **must** issue the *Order to Surrender and Prohibit Weapons* because:

☐ the court ordered the **No Harm** restraints above (section 8.A.) and the court finds that the restrained person had **actual notice** and an **opportunity to participate**. AND:

- the restrained person represents a **credible threat** to the physical safety of a protected person, OR
- this order explicitly prohibits the use, attempted use, or threatened use of **physical force** against any protected person.

Therefore, weapons restrictions are required by state law. RCW 9.41.800(2).

☐ the court finds by a preponderance of the evidence that the restrained person:

☐ has used, displayed, or threatened to use a firearm or other dangerous weapon in a felony; or

☐ is ineligible to possess a firearm under RCW 9.41.040.

☐ **may** issue the orders referred to above because the court finds by a preponderance of the evidence that the restrained person presents a serious and imminent threat to public health or safety, or the health or safety of any individual by possessing a firearm or other dangerous weapon.

The restrained person must:

- Immediately surrender to law enforcement and not access, possess, have in their custody or control, purchase, receive, or attempt to purchase or receive firearms, other dangerous weapons, or concealed pistol licenses; and
- Comply with the *Order to Surrender and Prohibit Weapons* filed separately.

Minors

Other family law court cases may modify this order about custody and visitation.

- P. ☐ **Custody:** *(If the parties have children together)* The protected person is granted temporary care, custody, and control of:

☐ the minors named in section 3 above

☐ these minors only: _____

Exceptions for visitation and transportation, if any (including exchanges, meeting location, and pickup and dropoff): _____

Visitation listed here is an exception only to No Contact and Stay Away provisions about the children in B and D above.

To comply with the Child Relocation Act, anyone with majority or substantially equal residential time (at least 45 percent) who wants to move with the child must notify every other person who has court-ordered time with the child. Specific exemptions from notification may be available if the court finds unreasonable risk to health or safety. Persons entitled to time with the child under a court order may object to the proposed relocation. See RCW 26.09.405 - .560 for more information.

- Q. ☐ **Interference:** Do not interfere with the protected person's physical or legal custody of:

☐ the minors named in section 3 above

☐ these minors only: _____

- R. ☐ **Removal from State:** Do not remove from the state:

☐ the minors named in section 3 above

☐ these minors only: _____

- S. ☐ **School Enrollment:** Do not enroll or continue attending the elementary, middle, or high school that a protected person attends: *(name of school)* _____

(Only if both the restrained person and a protected person are students at the same school. Can apply to students 18 or older. Includes public and private schools. Complete form PO 040B Attachment B School Transfer.)

Pets

- T. ☐ **Custody:** The protected person shall have exclusive custody and control of the following pet/s owned, possessed, leased, kept, or held by the protected person, restrained person, or a minor child who lives with either the protected or restrained person. *(Specify name of pet and type of animal.):* _____

- U. ☐ **Interference:** Do not interfere with the protected person's efforts to get the pet/s named above.